

Terms of Service — Momento

Effective Date: [Insert Date]

Welcome to Momento Tiramisù (“Momento”, “we”, “our”, “us”).

By accessing our website, placing an order, or using our services, you agree to the following Terms of Service.

These Terms apply to all orders, custom orders, pickups, deliveries, and use of the Momento website within

Australia,

subject to the specific delivery limits set out below.

1. General

We reserve the right to update, modify, or replace these Terms from time to time.

Updated Terms will be published on our website and will apply from the effective date shown. They will not affect orders already accepted unless required by law.

By continuing to use our website after changes are published, you accept those updates.

All prices listed on our website are in Australian Dollars (AUD).

2. Orders

All orders are subject to availability and acceptance.

Once your order is placed, you will receive confirmation via

email or your selected contact method.

We reserve the right to refuse or cancel orders where necessary, including cases involving pricing errors, product availability issues, or suspected fraudulent activity.

An order is only confirmed once it has been accepted by us

and payment has been received, where payment is required upfront.

3. Custom Orders

We offer customised tiramisù and dessert orders for celebrations, events, and special occasions.

For all custom orders:

- full payment is required at the time of booking;
- a minimum of two (2) weeks notice is required.

Any changes to custom orders must be requested at least seven (7) days before the scheduled pickup or delivery date and are subject to our approval and availability.

Custom orders may be cancelled for a full refund if cancellation is requested at least seven (7) days before the scheduled pickup or delivery date.

Subject to your rights under the Australian Consumer Law, custom orders cancelled within seven (7) days of the scheduled pickup or delivery date are considered final and non-refundable.

Refunds will not be provided for:

- late cancellations;
- missed pickups;
- unsuccessful deliveries caused by incorrect information or customer unavailability.

We reserve the right to refuse custom requests that are not feasible, safe, or aligned with our products and standards.

We will do our best to match requested designs, colours, decorations, or reference images, but final results may vary due to the handmade nature of our products.

4. Pickup Orders

Customers are responsible for collecting orders at the selected date and time.

Due to the delicate and perishable nature of our products, we

cannot guarantee product quality for delayed pickups.

Uncollected products may be discarded after a reasonable holding period.

Products must be collected on time and kept refrigerated after pickup. Momento Tiramisù is not responsible for product deterioration caused by delayed collection, improper

storage, transport, or handling after pickup.

5. Delivery

Delivery is available to selected Sydney suburbs only and is subject to availability. Delivery availability will be confirmed at checkout or when your order is accepted.

A minimum order of AUD \$100 applies. A flat AUD \$15 delivery fee applies within our standard delivery area. For addresses outside this area, delivery may be unavailable or subject to a separate quoted fee.

While we do our best to deliver within agreed timeframes, delays may occasionally occur due to traffic, weather, access

issues, or unforeseen circumstances.

Customers must ensure someone is available to receive the order at the agreed delivery time. We are not responsible for unsuccessful deliveries caused by incorrect details, unsafe or

difficult access, or customer unavailability.

Risk and responsibility for products pass to the customer upon delivery.

6. Product Information & Allergens

Our products may contain:

- eggs;
- dairy;
- gluten;
- nuts or traces of nuts.

We also offer gluten-free tiramisù options prepared using gluten-free biscuits and produced in a sanitised preparation environment with procedures aimed at minimising cross-contamination.

However, gluten-free products are prepared in a kitchen where gluten and other allergens may also be present.

While

we take reasonable precautions to minimise cross-contamination, we cannot guarantee that any product is completely allergen-free or suitable for people with severe allergies or coeliac disease.

Customers with allergies or dietary concerns consume our products at their own risk.

As our products are handmade, slight variations in appearance, decoration, texture, and colour may occur.

Product images on our website are intended as a guide only.

7. Food Safety & Storage

Our products are perishable and must be kept refrigerated.

Customers are responsible for following any storage and consumption instructions provided.

Momento Tiramisù is not responsible for deterioration, spoilage, or safety issues caused by incorrect storage, delayed collection, improper handling, or transport after pickup or delivery.

8. Refund Policy

Due to food safety and hygiene reasons, we cannot accept returns of food products once they have left our premises,

unless required under the Australian Consumer Law.

If there is an issue with your order, please contact us as soon

as possible and preferably at the time of pickup or delivery so we can assist appropriately.

Nothing in these Terms excludes rights available under the Australian Consumer Law.

9. Website Use

All website content, including logos, branding, images, text,

and designs, remains the property of Momento Tiramisù unless otherwise stated.

You may not reproduce, distribute, modify, or commercially use any content without written permission.

You agree not to misuse the website or attempt unauthorised

access to systems or data connected to the website.

10. Limitation of Liability

To the maximum extent permitted by law, Momento Tiramisù is not liable for:

- indirect or consequential loss;
- delays outside our reasonable control;
- allergic reactions where ingredient and allergen information

has been provided;

- damage occurring after pickup or delivery;
- product deterioration caused by incorrect storage, delayed collection, transport, or handling by the customer.

Our total liability relating to any order shall not exceed the amount paid for that order.

Nothing in these Terms limits or excludes any rights you

may have under the Australian Consumer Law.

11. Governing Law

These Terms are governed by the laws of New South Wales, Australia.

Any disputes arising in connection with these Terms shall be

subject to the jurisdiction of the courts of New South Wales.